

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

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HECTOR ACEVEDO,

Plaintiff,

FIRST AMENDED COMPLAINT
10 CV 3170 (RJS)(DCF)

-against-

THE CITY OF NEW YORK, GEORGE
ANNARELLA, CONSTANTINE
CHARIDEMOU and COSMO LUBRANO,
employees of the New York City Police
Department,

Defendants.

Jury Trial Demanded

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HECTOR ACEVEDO, by his attorney, Matthew Flamm, alleges the
following, upon information and belief, as his First Amended Complaint:

Nature of the Action

1. This civil rights action arises from the August 9, 2009 assault on
and arrest of Hector Acevedo on the false claim that he threw beer bottles at and
struck a police van as Police Officers were getting out of the van. Plaintiff seeks
declaratory relief pursuant to 28 U.S.C. §2201 as well as compensatory and
punitive damages for violation of his civil rights under 42 U.S.C. §1983.

Jurisdiction and Venue

2. This action arises under the United States Constitution and 42
U.S.C. §1983. This Court has subject matter jurisdiction pursuant to 28 U.S.C.
§1331 and §1343(3). Plaintiff asserts jurisdiction over the City of New York under
28 U.S.C. §1367. Plaintiff requests that this Court exercise pendent jurisdiction
over those state law claims arising out of the same common nucleus of operative
facts as do plaintiff's federal claims.

3. Under 28 U.S.C. §1391(b) and (c), venue is proper in the Southern District of New York as defendant City of New York resides in that judicial District.

Parties

4. Plaintiff Hector Acevedo is a citizen of the United States of America residing in the State and City of New York, New York County.

5. Defendant CITY OF NEW YORK is a Municipal Corporation within New York State. Pursuant to §431 of its Charter, the City of New York has established and maintains the New York City Department of Police as a constituent department or agency. At all times relevant, the City of New York employed the Police personnel involved in the incident underlying this lawsuit.

6. Defendant COSMO LUBRANO was at all times relevant a duly appointed and acting police sergeant employed by the New York City Police Department and assigned to the 23rd Precinct Anti-Crime Unit in New York, New York.

7. Defendant GEORGE ANNARELLA was at all times relevant a duly appointed and acting police officer employed by the New York City Police Department and assigned to the 23rd Precinct Anti-Crime Unit in New York, New York.

8. Defendant CONSTANTINE CHARIDEMOU was at all times relevant a duly appointed and acting police officer employed by the New York City Police Department and assigned to the 23rd Precinct Anti-Crime Unit in New York, New York.

9. Defendants ANNARELLA, CHARIDEMOU and LUBRANO (collectively the "individual defendants") were at all times relevant acting under color of State law.

10. The individual defendants involved in the incidents underlying this lawsuit were, at all times relevant, agents, servants and employees acting within the scope of their employment by defendant City of New York.

Notice of Claim

11. On or about October 8, 2009, and within 90 days of the events giving rise to plaintiff's claims, Hector Acevedo filed a Notice of Claim upon defendant the City of New York, by delivering copies thereof to the person designated by law as a person to whom such claims may be served.

12. The Notice of Claim was in writing and was sworn to by the plaintiff, and contained the name and post office address of the plaintiff.

13. The Notice of Claim set out the nature of claims, the time when, the place where and manner by which claims arose, and the damage and injuries claimed to have been sustained.

14. The City of New York has neglected and failed to adjust the claims within the statutory time period.

15. This action was commenced within one year and ninety days after the happening of the events upon which the claims are based.

Facts Underlying
Plaintiff's Claims for Relief

16. On August 9, 2009 at around 2:30 a.m., at least three male plainclothes police officers employed by the New York City Police Department – defendants ANNARELLA, CHARIDEMOU and LUBRANO – assaulted and

arrested Hector Acevedo in front of plaintiff's home at 2224 Second Avenue in Manhattan, a New York City Housing Authority-owned building part of the public housing development known as the Jefferson Houses.

17. The individual defendants, among other things, struck plaintiff in the face, pushed him over a railing and struck him in the mouth. He was taken first to the 23rd Precinct Stationhouse and then to Bellevue Hospital before being arraigned on false charges of resisting arrest and reckless endangerment.

18. Mr. Acevedo had been standing and smoking a cigarette by the front doors of the apartment building in which he lives before going in for the night; August 8, 2009 had seen the neighborhood's annual Jefferson Family Day barbecue, an event Mr. Acevedo has regularly attended over the more than twenty years in which he has lived in the neighborhood.

19. Although Mr. Acevedo had been and was doing nothing unlawful or suspicious, the individual defendants arrived in front of the building in an unmarked automobile and aggressively approached and accosted the plaintiff. Without cause or justification, Mr. Acevedo was pushed and pressed face first against a wall and then pushed over a railing, falling about six feet to the sidewalk.

20. One of the individual defendants struck plaintiff in the mouth.

21. One of the individual defendants placed his knee on the back of Mr. Acevedo's neck.

22. One of the individual defendants struck Mr. Acevedo in the side of his head and ear with a police radio while the other individual defendants did nothing to prevent or end that assault.

23. The individual defendants arrested and jailed Mr. Acevedo without cause or justification.

24. The individual defendants, or some of them, along with other members of the New York City Police Department, then conferred and thereafter presented false evidence to the Manhattan District Attorney's Office.

25. Mr. Acevedo was prosecuted under New York County Criminal Court Docket No. 2009NY062713 on the false charges of reckless endangerment in the second degree (P.L. §120.20, an A misdemeanor punishable by up to one year in jail) and resisting arrest (P.L. §205.30, also an A misdemeanor punishable by up to one year in jail).

26. Plaintiff was required under threat of arrest to appear in Criminal Court. The charges were dismissed and sealed on the motion of the District Attorney on January 25, 2010, five court appearances and five and one half months after the arrest.

27. None of the individual defendants took any action to prevent, end or truthfully report the incident despite the realistic opportunity to do so.

28. In addition to physical injuries and pain, Mr. Acevedo suffered emotional upset, shock, fright and deprivation of his constitutional rights, among other injuries. Mr. Acevedo suffered the debasement of being publicly assaulted and unlawfully arrested.

29. Plaintiff suffered physical pain and injuries, including, among other things, injury to his neck, head, face, nose, and mouth, left shoulder and wrists. Plaintiff still suffers with neck pain, headaches and dizzy spells. He has received medical care at Bellevue Medical Center and at Lenox Hill Hospital.

30. At all times relevant, and in arresting, prosecuting and using force on Mr. Acevedo, the individual defendants acted intentionally, willfully, maliciously, and with reckless disregard for and deliberate indifference to plaintiff's rights and physical and mental well-being.

**FIRST CLAIM FOR RELIEF FOR VIOLATING PLAINTIFF'S RIGHT
TO BE FREE FROM UNREASONABLE FORCE UNDER THE FOURTH
AND FOURTEENTH AMENDMENTS TO THE UNITED STATES CONSTITUTION**

31. Plaintiff repeats the allegations of paragraphs 1-30 as though fully stated herein.

32. By the actions described above, the individual defendants deprived plaintiff of rights secured by the Constitution and laws of the United States, including, but not limited to, his right to be free from excessive and unreasonable force.

33. As a consequence thereof Hector Acevedo has been injured.

SECOND CLAIM FOR RELIEF FOR ASSAULT

34. Plaintiff repeats the allegations of paragraphs 1-30 as though fully stated herein.

35. By the actions described above, plaintiff was intentionally placed in apprehension of imminent harmful and offensive contact.

36. As a consequence thereof Hector Acevedo has been injured.

THIRD CLAIM FOR RELIEF FOR BATTERY

37. Plaintiff repeats the allegations of paragraphs 1-30 as though fully stated herein.

38. By the actions described above, plaintiff was intentionally touched in a harmful and offensive manner.

39. As a consequence thereof Hector Acevedo has been injured.

FOURTH CLAIM FOR RELIEF FOR
VIOLATING PLAINTIFF'S RIGHT TO BE FREE FROM
UNREASONABLE SEARCHES AND SEIZURES UNDER THE FOURTH
AND FOURTEENTH AMENDMENTS TO THE UNITED STATES CONSTITUTION

40. Plaintiff repeats the allegations of paragraphs 1-30 as though fully stated herein.

41. By the actions described above, the individual defendants deprived Mr. Acevedo of rights secured by the Constitution and laws of the United States, including, but not limited to, his right to be free and secure in his person and his right to be free from arrest or search, except on probable cause or pursuant to a warrant.

42. As a consequence thereof Hector Acevedo has been injured.

FIFTH CLAIM FOR RELIEF FOR FALSE IMPRISONMENT

43. Plaintiff repeats the allegations of paragraphs 1-30 as though fully stated herein.

44. By reason of the foregoing, plaintiff was intentionally confined without privilege or probable cause to believe a crime had been committed. Plaintiff was aware of and did not consent to the confinement. Plaintiff was thereby falsely arrested and imprisoned.

45. As a consequence thereof Hector Acevedo has been injured.

SIXTH CLAIM FOR RELIEF FOR MALICIOUS PROSECUTION
IN VIOLATION OF PLAINTIFF'S RIGHTS UNDER THE FOURTH AND
FOURTEENTH AMENDMENTS TO THE UNITED STATES CONSTITUTION

46. Plaintiff repeats the allegations of paragraphs 1-30 as though fully stated herein.

47. The individual defendants, or some of them, without probable cause and with actual malice, commenced or allowed the commencement of a Criminal Court proceeding against Mr. Acevedo.

48. Mr. Acevedo suffered a deprivation of liberty resulting from government seizure in the form of legal process, being compelled, under threat of issuance of an arrest warrant and arrest, to appear in Criminal Court to contest the baseless charge.

49. As a consequence thereof Hector Acevedo has been injured.

SEVENTH CLAIM FOR RELIEF FOR MALICIOUS PROSECUTION

50. Plaintiff repeats the allegations of paragraphs 1-30 as though fully stated herein.

51. By reason of the foregoing, plaintiff Hector Acevedo was maliciously and without probable cause subjected to a criminal prosecution, said prosecution ending in plaintiff's favor.

52. As a consequence thereof Hector Acevedo has been injured.

EIGHTH CLAIM FOR RELIEF FOR FAILURE TO INTERVENE
TO PREVENT THE VIOLATION OF PLAINTIFF'S CIVIL RIGHTS

53. Plaintiff repeats the allegations of paragraphs 1-30 as though fully stated herein.

54. The individual defendants, and each of them, failed to intervene to

prevent, end, or truthfully report the unlawful use of force, arrest and false statements made by defendants in furtherance of the prosecution of Mr. Acevedo, despite having a reasonable opportunity to do so.

55. As a consequence thereof Hector Acevedo has been injured.

**NINTH CLAIM FOR RELIEF FOR
IMPROPER SUPERVISION BY DEFENDANT LUBRANO**

56. Plaintiff repeats the allegations of paragraphs 1-30 as though fully stated herein.

57. At all time relevant, defendant Lubrano held the rank of Sergeant and had direct supervisory responsibility for the conduct of defendants Charidemou and Annarella.

58. Defendant Lubrano participated in the incident and failed to properly supervise his subordinates or to otherwise take action to remedy the wrongs done to Mr. Acevedo.

59. As a consequence thereof, Hector Acevedo has been injured.

TENTH CLAIM FOR RELIEF FOR NEGLIGENCE

60. Plaintiff repeats the allegations of paragraphs 1-30 as though fully stated herein.

61. The acts complained of herein resulted from defendant City of New York, through its agents, servants and employees, breaching its duty properly to instruct, supervise, monitor and control its Police Officer, including instructing, supervising, monitoring and controlling the individual defendants herein.

62. The defendant City of New York's failure properly to assign, train, supervise, monitor or control its Police Officers, including the Police Officers involved herein, constitutes acquiescence in and tolerance of ongoing unconstitutional arrests, use of force, and baseless prosecutions, and allowed the defendants to believe that they could with impunity assault, arrest and prosecute Mr. Acevedo.

63. By reason of the foregoing, the defendant City of New York through its agents, servants, and employees, failed and refused to use such care in the performance of their duties as a reasonably prudent law enforcement provider would have used under similar circumstances.

64. As a consequence thereof Hector Acevedo has been injured.

Request for Relief

WHEREFORE, plaintiff respectfully requests that judgment be entered as follows:

- (A) Declaratory relief as follows:
 - 1. A declaration that plaintiff's right to be free from unreasonable searches and seizures under the Fourth and Fourteenth Amendments of the United States Constitution was violated;
 - 2. A declaration that plaintiff's right to be free from unreasonable use of force under the Fourth and Fourteenth Amendments of the United States Constitution was violated;
 - 3. A declaration that plaintiff's right to be free from malicious prosecution under the United States Constitution was violated;
- (B) Compensatory damages in an amount to be fixed at trial;

- (C) By reason of the wanton, willful and malicious character of the conduct complained of herein, punitive damages from the individual defendants in an amount to be fixed at trial;
- (D) An award to plaintiff of the costs and disbursements herein;
- (E) An award of attorney's fees under 42 U.S.C. §1988; and
- (F) Such other and further relief as this Court may deem just and proper.

Dated: September 21, 2010
Brooklyn, New York



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